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BERNARD R. BOXILL

The Morality of Preferential Hiring

Many philosophers have held that preferential hiring is morally objectionable. They do not object to the compensation of those who have suffered from various forms of discrimination, but hold, rather, that preferential hiring is not, for a number of reasons, an appropriate method of compensation.[1] In this essay I rebut two of the principal arguments raised against preferential hiring, namely (1) that preferential hiring benefits just those from among the groups that have suffered discrimination who do not deserve compensation, and (2) that preferential hiring is unfair to young white men.

I

The most common version of the first argument, always dragged out with an air of having played a trump, is that since those of discriminated groups who benefit from preferential hiring must be minimally qualified, they are not those of the group who deserve compensation. Alan Goldman, for example, argues this way: "Since hiring within the preferred group still depends upon relative qualifications and hence

1. See for example, Alan H. Goldman, "Reparations to Individuals or Groups?" *Reverse Discrimination*, ed. Barry Gross (New York: Prometheus Books, 1977); Goldman, "Justice and Hiring by Competence," *American Philosophical Quarterly* 14, no. 1 (1977); Goldman "Affirmative Action," *Equality and Preferential Treatment*, ed. Marshall Cohen, Thomas Nagel, Thomas Scanlon (Princeton: Princeton University Press, 1977), pp. 192-209; Robert Simon, "Preferential Hiring: A Reply to Judith Jarvis Thomson," *Equality and Preferential Treatment.*

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upon past opportunities for acquiring qualifications, there is in fact a reverse ratio established between past discriminations and present benefits, so that those who most benefit from the program, those who actually get jobs, are those who least deserve to."[2] But surely to argue from the above to the conclusion that preferential hiring is unjustified is a non sequitur. Let us grant, that qualified blacks, for example, are less deserving of compensation than unqualified blacks, that those who most deserve compensation should be compensated first, and finally that preferential hiring is a form of compensation. How does it follow that preferential hiring of qualified blacks is unjustified? Surely, the assumption that unqualified blacks are more deserving of compensation than qualified blacks does not require us to conclude that qualified blacks deserve no compensation. Because I have lost only one leg, I may be less deserving of compensation than another who has lost two legs, but it does not follow that I deserve no compensation at all.

Much the same can be said of Simon's somewhat less contentious argument that "preferential hiring policies award compensation to . . . those who have the ability and qualifications to be seriously considered for the jobs available. Surely it is far more plausible to think that collective compensation ought to be equally available to all group members."[3] But again, from the fact that preferential hiring does not award compensation to "all group members" how does it follow that preferential hiring is unjustified compensation to those of the group who "have the ability and qualifications"? It is easy to turn Simon's argument against him. If "all group members" should be compensated, then why insinuate that the qualified ones should be left out? And, if they should not be left out, why not compensate them in the manner best suited to their situation and aspirations—with good jobs—and compensate the unqualified in the manner best suited to their situation—cash settlements, remedial training, and so on.

The premise which would make the above argument less objectionable and which these critics of preferential hiring have not appeared to notice is that compensation can be made to only one section of the group—either the qualified or the unqualified, but not both.

2. Goldman, "Reparations to Individuals or Groups?" p. 322.
3. Simon, "Preferential Hiring: A Reply," p. 43.

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Given that the unqualified are most deserving of compensation, then a case should be mounted for claiming that, in the circumstances, preferential hiring should not be instituted because it takes from those who are most deserving of compensation (the unqualified) to give to those who are less deserving (the qualified). But it should be noted that even with the above premise, the argument does not quite yield what the critics want. For they want to show that preferential hiring of qualified minorities is unjustified *tout court*. And that is much more than showing that it is impracticable.

Now suppose the critics say that they meant that qualified blacks, for example, are not simply less deserving of compensation than unqualified blacks but that they deserve no compensation at all, just because they are qualified. The previous argument was that the ground for compensation is wrongful injury, so that if qualified blacks are generally less wronged they are therefore less deserving of compensation than unqualified blacks. The present argument is that the ground for compensation is not wrongful injury but, rather, lack of qualifications. In other words, though qualified blacks are discriminated against or suffer wrongful injury, their qualifications exclude them from consideration for compensation. Thus, James W. Nickel, who is one of the very few to have noticed the complication that discriminated persons can overcome the handicap of discrimination, adopts this last view. Allowing that it is perhaps only the least "problematic approach," he determines that "the ones who have a right to compensation are those who have personally been injured by discrimination and who have not been able to overcome this injury."[4]

But why should this be so? I am not questioning that on practical grounds we may be unable to compensate the qualified members of a generally discriminated group. I am questioning that just because a person has overcome his injury, he no longer has a right to compensation. Nickel himself gives no argument, but it may be that he mistakenly narrows the grounds for compensation.

Certainly the unqualified person is hurt and probably harmed. He is hurt in the sense that he will lose out to the qualified in the competition for jobs. And he is harmed too, if his lack of qualification

4. Nickel, "Preferential Policies in Hiring and Admissions," *Reverse Discrimination*, p. 329.

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involves a stunting of his intellectual and moral development. But though these are grounds for saying that he deserves compensation, they are not the only ones. For, as I have argued in an earlier essay, there are at least two very different grounds for compensation or reparation.[5] One ground looks forward; it evaluates present harms and, disregarding whether or not they are due to wrong, seeks to remedy them to secure some future good. The other looks backward; it seeks to rectify past injustices and can ignore whether or not the victims are *now* in a sorry state. Thus, I do not dispute that the unqualified have a claim to compensation—whether or not they have been wronged. What I do dispute is that just because they have overcome their injuries the qualified have no claim to compensation. For if they have overcome their injuries, they have borne the costs of compensation that should be borne by those who inflicted the injuries. If I am swindled and by time and effort retrieve my money, shouldn't I be compensated for my time and effort? Or if I have plenty of money and hire a good lawyer, shouldn't I also claim from my swindlers the money I paid the lawyer?

The costs, in time and effort, of overcoming an injury have results other than overcoming the injury. A person who has worked hard and long to overcome an injury is not what he would have been had he never been injured. He may be better, or he may be worse. Adversity can strengthen or it can merely harden. Thus middle-class blacks are alternately praised for their toughness and deprecated for their insensitivity. But these side-effects of the cost of overcoming wrongful injury are not the main issue. In particular, though I may be a better person for prevailing over unfair obstacles, this does not absolve my injurers from the obligation to compensate me.

Consequently, being harmed is not the only ground for deserving compensation. There is also the ground of simply having been wronged. Goldman, for example, has overlooked this. Repeatedly he stresses that qualified blacks are the least harmed of blacks, while ignoring that this does not entail they have not been wronged. "Do we want a policy which inverts the ratio of past harm to present benefit . . . ?" he asks, pointing to the "inconsistency of compensating past harm with benefits to those harmed least . . ." and to the fact that "the

5. Boxill, "The Morality of Reparations," *Reverse Discrimination*, pp. 270-278.

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beneficiaries of affirmative action, with the exception of certain blue collar workers, are generally not economically depressed."[6] But this view overlooks that being unqualified and economically depressed are not the only grounds for compensation.

This does not affect the proposition that unqualified blacks are more deserving of compensation than qualified blacks. Irving Thalberg, for example, asks us to consider two groups of persons K' and K''. K' consists of persons who, despite "dreadful persecution," now manage to hold their own in the larger society, and K'' consists of persons who, though "never oppressed," now are at the "bottom of the socioeconomic-political pecking order."[7] Which of these groups, he asks us, "most deserve special treatment?" It is clear that, though they are admittedly not at all the victims of injustice, he is himself inclined to choose K''. But though Thalberg takes this position, he does not at all commit himself to the claim that K' deserves nothing. On the contrary, by stressing that "our resources are enough for one group only" he clearly implies that he would allow that K' has a claim too, though K'' has a stronger claim. Now as it happens, I agree with Thalberg, though the case I have in mind is easier than his. My case is that when we have one group, say K, whose members are equally oppressed because they are K's, those K's who nevertheless manage to qualify themselves are less deserving of compensation than those K's who fail to qualify themselves. This case is easier than Thalberg's because the people to whom he would give preference are not victims but only unqualified, while the people to whom I would give preference are both victims and unqualified.

So far I have agreed that qualified blacks are less deserving of compensation than unqualified blacks. And I have agreed that this is because they may be less harmed and perhaps less wronged than unqualified blacks. What I reject is the facile assumption that this in any way implies or suggests that preferential hiring is unjustified. My premise—which at first seemed to be allowed by critics of preferential hiring—is that qualified blacks, though perhaps less harmed or

6. Goldman, "Affirmative Action," pp. 206, 207.

7. Thalberg, "Reverse Discrimination and the Future," *Women and Philosophy*, ed. Carol Gould and Marx Wartofsky (New York: G. P. Putnam's Sons, Capricorn Books, 1976), pp. 300, 301.

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wronged than unqualified blacks, are still harmed and wronged or, at least, still wronged. But it is just this premise that now seems to be denied. Thus Goldman first makes the claim (which I can allow) that in the preferential hiring of qualified minority candidates, there is "an inverse ratio established between past discrimination and present benefits." But then, on the next page, he makes the very much stronger claim—which does not at all follow from the first—that preferential hiring "singles out for benefits within a generally unjustly treated minority just that minority that has not been unjustly treated."[8]

This confusion between being the *least* wronged and harmed of a group and being only *slightly*, or not at all, harmed or wronged is essential to the present objection to preferential hiring. Thus, since preferential hiring has been proposed as giving the edge to persons characterized by some group quality—for example, being black—the question has been raised about how high the correlation is between being black and being harmed or wronged. We may agree, I trust, that it must be very high. Goldman, for example, does not deny this. It is only perfect correlation, that "every member of the group has suffered from unjust denial of a job or of a decent education" that he labels a "drastic claim."[9] But if so, then the serious objection to preferential hiring as a practice cannot be that a tiny fraction of qualified blacks will get breaks they do not deserve. Surely, if this is the only practical way to help a group, the vast majority of which fully deserves compensation, that objection would be only grudging.[10] But I contend

8. Goldman, "Reparations to Individuals or Groups?" pp. 322, 323. I am not saying that Goldman tries to draw the second proposition from the first. My point is that the second—that the qualified of an otherwise generally mistreated minority are not unjustly treated—does not follow from the first—that the qualified of such a minority are the least unjustly treated. Further, no justification is given or attempted for the second proposition. In "Affirmative Action," Goldman claims that minority members with "Ph.D.s or other professional qualifications who will benefit from the policy . . ." have not been "appreciably harmed." But it does not at all follow that because they have such qualifications, they have not been harmed or "appreciably harmed." If among a group of amputees who all have lost two legs, I have lost only one, I may be the least harmed, but I am still appreciably harmed.

9. Goldman, "Limits to the Justification of Reverse Discrimination," *Social Theory and Practice* 3, no. 3 (1975): 294.

10. By "group" here I mean the group of qualified blacks, not the group of blacks in general.

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that it is not the serious objection. The serious objection is that no qualified blacks deserve compensation. And that, I submit, can seem plausible only if we confuse being less harmed and wronged than others of their group with being only slightly, or not at all, harmed and wronged.

Suppose, however, that there is not a high correlation between being harmed or wronged and being black. This is an important possibility for, if true, it undoes the argument in the preceding paragraph. Blackstone, for example, after noting the unexceptional proposition that there is "no invariable connection between a person's being black or female and suffering from past invidious discrimination," leaps to the conclusion that there are lots of blacks who have suffered from no invidious discrimination. Thus, he writes, "there are many blacks . . . who are highly advantaged, who are the sons and daughters of well educated and affluent lawyers, doctors and industrialists. A policy of reverse discrimination would mean that such highly advantaged individuals would receive preferential treatment over the sons and daughters of disadvantaged whites . . . I submit that such a situation is not social justice."[11] Now this may seem like a commendable effort to define the groups deserving compensation in socioeconomic, rather than racial, terms. But it raises troubling questions. Why does Blackstone assume so easily, for example, that "reverse discrimination" would mean that the "highly advantaged" blacks he speaks of would be getting preferred treatment over disadvantaged whites? I would have thought that being so advantaged they would likely be vying with their peers—the highly advantaged sons and daughters of white doctors, lawyers, and industrialists—leaving the sons and daughters of disadvantaged blacks to get preferential treatment over the children of disadvantaged whites. If, with all their advantages, the black people Blackstone describes are still reduced to competing against disadvantaged whites then all the more would it seem that they have been harmed most deeply and grievously.

Taken at its best, Blackstone's objection may be that preferential hiring gives an unfair edge to advantaged blacks who have lost out in the competition for jobs and places. Unquestionably, preferential

11. Blackstone, "Reverse Discrimination and Compensatory Justice," *Social Theory and Practice* 3, no. 3 (1975): 268.

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hiring gives such blacks an edge over disadvantaged blacks. Since, however, this is the edge the middle-class has over the lower class, to make his objection stick, Blackstone should recommend sweeping changes in the class structure. But Blackstone makes no such recommendation. Preferential hiring would give an unfair edge to advantaged blacks over disadvantaged whites, if the positions and places it serves them would otherwise go to disadvantaged whites. But this would be so only if the competition they have "lost out" in were fair. Since the small number of blacks gaining desirable positions and places shows the competition is not fair, the edge advantaged blacks gain is over advantaged whites.

In arriving at the above claim, I have left several assumptions unstated. The most obvious is that the black and white groups are roughly equal in native talent and intelligence. If they are not, then unless differences in native ability between the groups are remediable and justice requires that they be removed, it is not at all clear that the lower qualifications of blacks are any indication that they had been wronged. Fortunately, this difficulty can be avoided. The weight of informed opinion is against Jensen, but even if it is ultimately shown to have some merit, his theory that as a group blacks have less native intellectual talent than whites is, for now, extremely controversial. Jensen himself, though regrettably not chary enough in proposing policies based on this theory, is tentative enough in stating it.[12] Consequently, given its present uncertainty and the great injustice that would be wreaked on a people if it proved false and educational policies were based on it, I submit that we are not warranted now in basing any policies on it.

A more serious attempt to explain the group differences in qualifications between blacks and whites is to attribute them to cultural differences. This is a complex issue. Though controversial, it cannot be swept aside in the manner of the last objection. For it has several different versions which must be considered separately. The first, with which we are all by now familiar, is that the tests administered for admission to colleges and professional schools are culturally biased,

12. Jensen, "How much can we boost IQ and Scholastic Achievement," *Environment, Heredity and Intelligence* (Cambridge: Harvard University Press), p. 117.

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giving an unfair advantage to white applicants. This version is irrelevant. It explains, perhaps, why blacks are underrepresented in positions of responsibility and wealth, but it does not purport to show that underrepresentation is just. The second version, more to the point, is that blacks simply are not as interested as whites in society's positions of affluence and prestige. Barry Gross suggests this line in his argument that underrepresentation is no clear indication of discrimination: "The members of a group might simply lack interest in certain jobs (for example, Italians in the public school system are in short supply)."[13] But this analogy fails, though Gross does not appear to notice it, when applied to the case of blacks. For it isn't as if blacks are underrepresented in the public school system or in law or in banking or in the professions. It is that they are underrepresented in all of these. Consequently, though Gross may be right that "sociologically, groups are simply not represented in various jobs and at various levels in percentages closely approximating their percentage of the population," he fails to see that the case of blacks presents a matter of an altogether different order.[14] Lack of interest in this or in that area—presumably culturally determined—may explain away underrepresentation of a cultural group in this or in that area. Unless, however, we assume that some cultures have no interest in any of the traditional areas, we cannot explain a group's general underrepresentation in all desirable positions in society by citing cultural differences.

The more common version of the argument that cultural differences explain black underrepresentation in desirable positions is not that blacks lack an interest in these positions but that they lack the discipline for them. This argument is a non sequitur. Even if the traits which inhibit the success of blacks are cultural traits—supposedly a lack of appropriate work habits and discipline—it does not follow that they are not wrongful injuries. In order to survive and retain their sanity and equilibrium in impossibly unjust situations, people may have to resort to patterns of behavior and consequently may develop

13. Gross, "Is Turn About Fair Play?" in *Reverse Discrimination*, p. 381.

14. Ibid., p. 380. Gross here incisively makes the point that the two questions—Who fails to do well? and Who is discriminated against?—are quite different and can yield different answers. Goldman implies the answers are the same when he assumes that qualified blacks (presumably because they are qualified) are not unjustly treated.

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habits or cultural traits which are debilitating and unproductive in a more humane environment. I see no reason why these cultural traits —which may be deeply ingrained and extremely difficult to eradicate— should not be classed as unjust injuries.[15] It is admittedly unusual to think of cultural traits as injuries because we think of cultures as, in an important sense, self-imposed. This is true of most cultures in the traditional sense of national and ethnic cultures. Such cultures come with built-in philosophical self-justifications. In the sense that participants in them necessarily have elaborate resources with which to justify themselves, they may be viewed as self-imposed. Consequently, though such cultures may encourage development of traits which inhibit advancement in modern society, it would be hazardous to call the traits injuries.[16] At most, they would be self-imposed injuries. But not all cultures are, in that important sense, self-imposed. Certain cultures contain none of the elaborate philosophical self-justification of ordinary cultures. Thus, in describing what he called the "culture of poverty" for example, Oscar Lewis notes that though it is a genuine culture in the traditional anthropological sense, in that it provides human beings with a "design for living" it "does not provide much support . . . poverty of culture is one of the crucial traits of the culture of poverty."[17]

But the idea that blacks form a cultural group is not notably advantageous for the critics of preferential hiring. For it can be argued that since blacks have been discriminated against as a group, they deserve compensation as a group. Further, individual blacks—in particular qualified ones—should not have to prove specific cases of discrimination against them in order to qualify for preferential treatment. But the critics claim that blacks do not comprise a group in the sense required by the argument. Goldman, for example, objects to treating blacks as a legitimate group eligible for compensatory treatment because they "do not qualify as genuine groups or social organizations in the sense in which sociologists generally use these terms."

15. For example, chronic tardiness.

16. For examples of such cultural traits, see P. T. Bauer, *Dissent on Development* (London: Weidenfeld & Nicolson, 1976), p. 201.

17. Lewis, "The Culture of Poverty," *Scientific American* 215, no. 4 (Oct. 1966): 25.

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He goes on to point out that in genuine groups there is "actual interaction among members, each of whom occupies a certain position or plays a certain role in the group reciprocal to other roles, roles being reciprocal when their performances are mutually dependent."[18] But I submit, on that very account, that cultural groups do qualify as genuine groups. There is, for example, "actual interaction" among the members of a cultural group. That interaction is, of course, not specifically economic or political. Members of a cultural group do not, for example, necessarily buy from each other or employ each other or rule each other. Still they *do* interact and that interaction is just as important as the activities already mentioned.

Members of a cultural group share basic values and ideals—that is what we mean by calling them members of the same cultural group—and they interact intellectually by exchanging ideas about these values and ideals, by clarifying, criticizing, and extending them and by severing and drawing connections between them. In this way they come better to understand themselves. All prosperous and progressive peoples engage in this bustling process of self-clarification. Some call it the cause of all progress, others the reward of progress. In either case, it is a great good. If then it is objected that blacks are underrepresented in positions of wealth and prestige because of cultural differences, then if they have been wronged as a group, preferential hiring of qualified blacks is justified as a way of compensating the group. For it needs no argument to show that the intellectually most active and advanced of a cultural group play a crucial role in the abovementioned process of self-clarification.[19] If then, as seems likely, they will be among those qualified, and preferential hiring will give them the opportunity to play their crucial role in the group, then it is a way of compensating the group. And it will not do to object that if blacks form a cultural group, then the qualified among them should seek employment within that group. Though cultural groups may have originally been economic units, this is no longer the case in today's world of mass migrations. There is no reason why distinct cultural groups cannot be economically integrated.

18. Goldman, "Limits to the Justification of Reverse Discrimination," p. 292.

19. W.E.B. Dubois makes this point about the talented tenth of every group. See W.E.B. Dubois, "The Talented Tenth," *Negro Social and Political Thought 1880-1920*, ed. Howard Brotz (New York: Basic Books, 1966), p. 518.

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But even if blacks do not form a cultural group, then preferential hiring is still justified. For if blacks have the same basic goals, aspirations, dreams, and hopes as whites and would, if given real opportunities, work assiduously to realize them, then—given the unjustness of assuming at this stage that blacks as a group have less native intelligence than whites and given the existence of independent evidence of widespread and pervasive discrimination against blacks—it is a reasonable assumption that the lesser merit of qualified blacks relative to qualified whites is due to injustice. What other explanation is there?

Goldman, for example, opposes Thalberg's example of a group *K* which, though never the victim of oppression, is now at the bottom of society or, as we may say here, underrepresented in positions of wealth and influence.[20] He stresses the "historical unlikelihood" of such a group and claims that it is either a "statistical accident" or "impossible." Of course he does not conclude—and neither, it should be emphasized, have I—that therefore the only reasonable assumption is, *contra hypothesis*, that group *K*" was oppressed. It could, after all, be accidental. For example, if the class of left-handed redheads were thus underrepresented, it would be unreasonable to infer unjust discrimination. Independent evidence of discrimination is necessary in order to attribute their position to discrimination. No one, I imagine, would be willing to deny such evidence in the case of blacks. Consequently, we are again forced back to the conclusion that even qualified blacks have been wronged and harmed and deserve compensation.

But it may be objected that my easy passage from "pervasive discrimination" against blacks to "even qualified blacks have been wronged and harmed" is unwarranted. Thus many critics of preferential hiring, while admitting that discrimination against blacks exists, maintain that if it affects mainly lower-class unqualified blacks, then middle-class and qualified blacks suffer only vicariously and indirectly. Before showing the spurious nature of this theory of vicarious and indirect suffering, I want to stress the ambiguity in the claim that middle-class blacks escape discrimination. On the one hand, it could mean that by talent, tenacity, effort, the use of scarce resources and

20. Goldman, "Reverse Discrimination and the Future: A Reply to Irving Thalberg," *The Philosophical Forum* 11, nos. 2-3: 322.

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a tough hide, the middle-class blacks overcome or avoid the more obvious effects of discrimination. But if this is what is meant, then as I have argued, it does not at all follow that they have not been wronged or harmed and are undeserving of compensation. On the other hand, the claim that middle-class blacks escape discrimination may mean literally that certain blacks are simply never, or almost never, discriminated against in any way. They are never—just because they are black—refused jobs and housing, compelled to spend extra money to send their children to adequate schools, harassed by police, and so on.

I shall not take time to argue that this other meaning is unlikely. There is another answer. Even if some blacks escape discrimination altogether, it must be admitted that there is a pervasive prejudice against blacks as a group and a tendency to discriminate against them. Consequently, even those who escape discrimination are witness to the discrimination against other blacks. This takes us to the argument proposed by Judith Jarvis Thomson—"even those who were not themselves down-graded for being black or female have suffered the consequences of the down-grading of other blacks and women: lack of self confidence and lack of self respect."[21] Certain authors have taken this as argument for a kind of "indirect," "vicarious" wrong. In responding to it, Goldman, for example, has objected that we should reserve "vicarious compensation to those who suffer psychologically or vicariously from injustice toward others" and that we should "draw the line at indirect psychological pressures."[22] I shall show, however, that Goldman's response completely misses the point, which has nothing to do with "vicarious suffering."

It may seem to be relevant to the question only because it conflates two distinct cases. Consider, for example, Goldman's argument that a traumatized witness does not "suffer the harm of the real victim. Similarly a Jewish millionaire in Scarsdale, no matter how much he suffered vicariously or psychologically from hearing of the German concentration camps, is not owed the reparations due a former inmate."[23] But it seems clear that two very different cases are indiscrimi-

21. Thomson, "Preferential Hiring," p. 36.

22. Goldman, "Reverse Discrimination and the Future: A Reply," p. 324; Goldman, "Limits to the Justification of Reverse Discrimination," p. 296.

23. Goldman, "Affirmative Action," p. 206.

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nately mixed together here. On the one hand, a witness might identify with the victim and suffer vicariously and indirectly; on the other hand, the transgressors might identify the witness with their victim and say that there is as much reason for persecuting the witness as the victim. But the witness who suffers vicariously may not be in imminent danger, and the witness who is in imminent danger need not suffer vicariously.

It would, however, be an egregious error to conclude that the latter witness does not suffer at all. He could certainly suffer at the realization that he too was under sentence and could be next. There are, therefore, two completely different sufferings that a witness to the persecution of others might endure. The first stems from sympathy for the victims; it is vicarious and could be called indirect. The second stems from the witness' self-interested realization that he is under sentence too and could be next. But, though it may be "psychological," it is not vicarious and there is nothing indirect about it. The example of the Scarsdale Jew—that he is a millionaire is irrelevant—obscures this. Safely ensconced in Scarsdale, any Jew, millionaire or not, was safe from Hitler. That example insinuates that the Jew who was not himself victimized could feel only vicarious suffering. To bring back balance, I suggest pondering the plight of a Jewish multimillionaire in Berlin.

Failure to distinguish these two kinds of "suffering" is responsible for the idea that vicarious suffering is relevant to the undermining of the self-confidence and self-respect that Judith Jarvis Thomson was presumably referring to. For while the realization that, like the actual victim, one is also under sentence and could be next has everything to to do with this undermining of self-confidence and self-respect, vicarious suffering has nothing to do with it. Clearly, it is the realization that one is perpetually under suspicious scrutiny, that one is under sentence, that one is only tolerated, that one's life and prospects may suddenly change for the worse in a way one cannot control which undermines self-confidence. Thus, vicarious suffering is irrelevant. As I have shown, I can suffer vicariously for others and not at all feel threatened. In fact, it is not implausible that a feeling of security is in many cases a condition for vicarious suffering; for it may be, as some psychologists say, that to sympathize with others, a person must be

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secure. In other words, if I feel myself threatened, I may be too worried about my own prospects to be able to sympathize with and suffer for others. Consequently, the vicarious suffering of middle-class blacks for lower-class blacks, if it exists to any appreciable degree, is completely irrelevant to the question of the undermining of their self-confidence and self-respect. What is relevant is the uncertainty and ambiguity of their own lives.

But the red herring of vicarious suffering is misleading in yet another way: It suggests that the undermining of self-confidence and self-respect under discussion is a consequence of "injustice toward others." Of course, vicarious suffering is no indication of injustice to oneself. Though, for example, a white person may suffer vicariously at the thought of discrimination against lower-class blacks, the injustice is to them and not to him. When, however, black persons feel threatened and insulted when other black persons are discriminated against because they are black, the injustice is both to those actually discriminated against and to those who are spared. Because the blacks discriminated against are discriminated against because they are black, all black people are warned that they too deserve the same treatment. The injustice toward them twofold. First, they suffer the "judgmental injustice" that because they are black they deserve less consideration than others.[24] Second, they suffer the uncertainty to which judgmental injustice condemns them and the possible loss of self-confidence and self-respect resulting from that uncertainty.

Accordingly, even if we assume that certain black people are not actually discriminated against, it does not follow that they are not unjustly treated, or that the losses they endure are due to "vicarious suffering." Consequently, the argument for excluding them from compensation fails. Here, that even the blacks who are spared actual discrimination are treated unjustly by the discrimination against other blacks because they are black is essential. For if the spared blacks were not themselves treated unjustly but only suffered vicariously because of injustice to others, then even if in some conceivable way this should cost them their self-confidence and self-respect, they would deserve no compensation. The objection that vicarious suffering for injustice

24. See Joel Feinberg, "Non-Comparative Justice," *The Philosophical Review* 83 (July 1974): 300.

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to others does not deserve compensation is thus well taken. The point is that the case we are considering is not a case of vicarious suffering for injustice to others.

II

Even if the force of all the preceding arguments is acknowledged, however, the case for preferential hiring is still not established at this point. For, while I have shown that the qualified members of groups which have been generally discriminated against deserve some compensation, I have not shown that the compensation they deserve is preferential hiring.

This issue raises two different questions. First, given that qualified minorities do deserve some compensation, why is preferential hiring the best form of compensation for them? Second, even if preferential hiring of qualified minorities is best for them, is it best or even justifiable overall? What, for example, about the costs to general productivity? Or to excellence? Most of all, perhaps, what about the costs to the young white males who will be displaced in favor of minorities? Why should the burden of compensation be placed on their shoulders alone?

Professor Thomson has already given, I think, the main answer to the first difficulty. She argues persuasively that "what blacks and women were denied was full membership in the community; and nothing can more appropriately make amends for that wrong than precisely what will make them feel they now finally have it. And that means jobs. Financial compensation . . . slips through the fingers; having a job, and discovering you do it well, yield—perhaps better than anything else—that very self-respect which blacks and women have had to do without."[25] It is only necessary to add perhaps that particularly in the case of the qualified is it appropriate that their compensation be jobs. For by the very fact that they have taken the trouble to become qualified they show that what they want is jobs, or at least, that they are fully prepared and anxious to get jobs. Though it may be generally true that jobs will make those previously excluded finally feel that they are "part of it," it need not be generally true, that all

25. Thomson, "Preferential Hiring," p. 38.

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those previously excluded will want jobs. Some may prefer "financial compensation."

But, even though it may be admitted that getting and keeping a job is an excellent thing for the self-respect and self-esteem of qualified members of minority groups—for having a job helps a person to feel he is contributing his "fair share" and, if he discovers that he does it well, also helps him to recognize and appreciate his powers—the question has been raised whether getting and keeping a job *because of preferential hiring* may not undermine self-respect. Thus Barry Gross writes that the beneficiary of preferential hiring "may come to feel himself inferior." Thomas Nagel warns that preferential hiring "cannot do much for the self-esteem of those who know they have benefited from it, and it may threaten the self-esteem of those in the favored group who would in fact have gained their positions even in the absence of the discriminatory policy, but who cannot be sure that they are not among its beneficiaries." Thomas Sowell cautions that though "here and there, this program has undoubtedly caused some individuals to be hired who would otherwise not have been hired . . . even that is a doubtful gain in the larger context of attaining self-respect and the respect of others."[26]

Though evidently closely related, these objections are not all quite the same. Gross' objection, for example, seems to be that a person preferentially hired for a job for which he is incompetent or who is outclassed by his colleagues will come to feel inferior. This is true but irrelevant, for preferential hiring does not require that incompetents be hired or that a candidate be hired who will be outclassed by his colleagues. The points made by Nagel and Sowell overlap but raise two distinct difficulties. On the one hand, the difficulty may be that the beneficiary of preferential hiring may lose self-respect because he may fear that he is getting what he does not deserve. I admit that a person who accepts what he knows he does not deserve (or have a right to) and knows he is taking away from someone more deserving acts in opposition to his self-respect and in trying to rationalize his act, may come to compromise and lose his self-respect. But I deny that

26. See Gross, "Is Turn About Fair Play?" p. 383; Nagel, "Equal Treatment and Compensatory Discrimination," *Equality and Preferential Treatment*, p. 17; Sowell, "Affirmative Action Reconsidered," *Reverse Discrimination*, p. 130.

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this is relevant here. For the major conclusion of all the preceding arguments is that though the preferred candidate may be less excellently qualified than another candidate, he must still overall be the most deserving. Given this, the present difficulty does not arise. On the other hand, the difficulty may be that though the preferred candidate knows that he is overall the most deserving, he may still feel uneasy and compromised because he knows he is not the most qualified or, at least, he does not know that he is the most qualified. This difficulty is quite different from the previous one. Here, the preferred candidate knows his deserts and that he is the most deserving. What he would like to be reassured about are his qualifications. This does not, however, argue against preferential hiring. For suppose preferential hiring is not instituted and that as a result more qualified but perhaps less deserving candidates are routinely hired. What about their self-respect and self-esteem? Shouldn't *they* feel their self-respect jeopardized for filling jobs others deserve more? Since this is evidently a more serious worry than the more deserving person's worry, on this point too, preferential hiring is not unjustified.

Having shown that there is every reason to believe that preferential hiring is the best form of compensatory treatment for qualified minorities and that they would suffer no severe penalties to self-respect and self-esteem from it, I turn to the question whether it is best or justifiable overall. But I shall not spend much time on the question of its costs to efficiency or excellence.[27] I shall concentrate instead on the objection that preferential hiring is unjustified because it puts all the burden of compensation on the white male applicant.

Here again I think that Professor Thomson has proceeded in the right way. She admits first that there is no reason why the young white male applicants should bear the major costs of compensating, but then argues that though few of these have "themselves individually, done any wrongs to blacks and women . . . ," because "they have profited from the wrongs the community did" there is reason why they should bear some of the costs of compensation. In opposing the second part of her argument, Simon objects to her "assumption that

27. On this question see, for example, Richard Wasserstrom, "The University and the Case for Preferential Treatment," *American Philosophical Quarterly* 13, no. 2 (April 1976): 165.

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if someone gains from an unjust practice for which he is not responsible and even opposes, the gain is not his and can be taken from him without injustice."[28] What he fails to notice, however, is that if his objection stands, it just may turn out that no one should have to bear the costs of compensation and thus no compensation should be given. For though it is probably not true of actual societies, it is quite possible to conceive of a society some of whose members have gained at the expense of others because of earlier unjust practices, but none of whose members now have any responsibility for these practices. In such a society all of the beneficiaries of injustice would be analogous to the young white male applicants, and if Simon is right, those who have suffered losses because of the earlier injustice have no claim to compensation. It is important therefore to consider carefully the claim that the innocent beneficiaries of injustice owe no obligation of compensation to those from whose unfair losses they have profited.

Few of its proponents, however, have offered a sustained argument for it. Blackstone, for example, says simply that the fact that the white male applicant has profited from past injustice is "inadequate" ground to exact compensation from him, and Simon seems to argue mainly for the minor point that if the white male applicant has himself suffered from some unjust social practice then it is "questionable" whether he owes anyone compensation.[29] Fullinwider, however, has attempted a more thorough treatment. Conceding first what he calls the compensation principle—"he who wrongs another shall pay for the wrong"—he accuses Professor Thomson of confusing it with the "suspect" principle—"he who benefits from a wrong shall pay for the wrong." To clinch the point, Fullinwider asks us to consider the following ingenious example. A neighbor pays a construction company to pave his driveway, but someone maliciously directs the workmen to pave Fullinwider's driveway instead. Fullinwider admits that his neighbor has been "wronged and damaged" and that he himself has "benefited from the wrong." However, since he is not responsible for

28. Thomson, "Preferential Hiring," p. 38; Simon, "Preferential Hiring: A Reply," p. 46.

29. Blackstone, "Reverse Discrimination and Compensatory Justice," p. 269; Simon, "Preferential Hiring: A Reply," p. 46.

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the wrong, he denies that he is "morally required to compensate" his neighbor by "paying" him for it.[30]

This example makes us see that not all cases where compensation may be due are straightforward, though one kind of case clearly is. If John steals Jeff's bicycle and "gives" it to me, however innocent I may be, I have no right to it and must return it to Jeff as soon as I discover the theft. Given that this kind of example is unproblematic, in what way does it differ from Fullinwider's, which is problematic?

One difference is that whereas I can simply hand over Jeff's bicycle to him, Fullinwider cannot simply hand over the pavement in his driveway. It will be objected that the proposal was not that Fullinwider should hand over the pavement, but that he should pay his neighbor for it. But now the case has been changed. I did not say that I had a duty to pay Jeff the cost of his bicycle. I said that I had a duty to return the bicycle to Jeff. If Jeff told me to keep the bicycle but pay him for it, I do not admit that I would have a duty to do so. I could fairly object that when I accepted the bicycle I did not believe that I would have to pay for it, and if I had thought that I would have to, I might not have accepted it. Paying for the bicycle now would impose a cost on me because I might have preferred to spend my money in a different way and, being innocent of any wrongdoing, I see no reason why I should be penalized. The point is that though the beneficiary of an injustice has no right to his advantage, if he is innocent of the injustice, he does not deserve to be penalized. Thus, where compensation is concerned, the obligations of the innocent beneficiary of injustice and of the person responsible for the injustice are quite different. Though the former has no right to his benefits, the obligation of compensation cannot impose any losses on him over and above the loss of his unfair benefits. If compensation is impossible without such loss, it is unjustified. On the other hand, in the case of the person responsible for injustice, even if compensation requires him to give up more than he has unfairly gained, it is still justified.

But though Fullinwider's example is cogent as far as it goes, it is irrelevant as an argument against preferential hiring. It is cogent as

30. Fullinwider, "Preferential Hiring and Compensation," *Social Theory and Practice* 3 (1975): 316, 317.

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far as it goes because, as the above analysis shows, requiring young white males to pay women and minorities all the unfair advantages they enjoyed would indeed be unfair. The advantages cannot simply be transferred from their hands into those of the preferred group as in my example of the bicycle. Compensation of this form would impose on young white males costs in time and effort over and above the costs of the unfair advantages they are required to return. They could with justice protest that they are being penalized because they might not have accepted the advantages had they known what it would cost them—now they are "out" both the advantages plus their time and effort. But though cogent, this argument is irrelevant to preferential hiring. Preferential hiring does not require young white males to pay over, at additional costs to themselves, the price of their advantages. It proposes instead to compensate the injured with goods no one yet has established a right to and in a way, therefore, which imposes no unfair losses on anyone. And these goods are, of course, jobs.

To that it may be objected that although a white male applicant may not have established a right to this or that job, he has a right to a fair competition for it, and preferential hiring violates that right. But on the contrary, by refusing to allow him to get the job because of an unfair advantage, preferential hiring makes the competition fairer. The white male applicant can still complain, of course, that had he known that preferential hiring would be instituted, he would not have accepted his advantages in the first place. Since, if he knew that preferential hiring would be instituted, he would necessarily also have known that his advantages were unfair, his complaint amounts to his saying that had he known his advantages were unfair, he would not have accepted them. But then, if he is so concerned with fairness, and if preferential hiring makes the competition fairer, he should have no objections to it. Or somewhat less contentiously, preferential hiring imposes no unfair losses on him.

Thus, a fairer application of Fullinwider's example of the driveway to preferential hiring would go as follows: Suppose an "improve your neighborhood group" offered a valuable prize for the best driveway on the block. Would Fullinwider, though he is totally innocent of his unfair advantage, be justified in insisting that he deserves to get the prize over his neighbor who has, at further cost to himself, built an-

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other somewhat inferior driveway? If someone objects that jobs are not analogous to prizes, suppose a visitor wants to rent a driveway on the block to park his car, would Fullinwider be justified in insisting that he most *deserves* to have his driveway chosen? Of course, Fullinwider can still truly point out that his driveway is the best, and perhaps if efficiency alone were the consideration, it ought to be chosen. But laying aside efficiency as I have, it is clear that it is the neighbor who most deserves that his driveway be chosen.

III

In Part I, I considered one set of objections to preferential hiring: that it compensates those who do not deserve it. At bottom these objections failed, because those who proposed them focused their attentions too exclusively on how much more fortunately placed the black middle class is than the black lower class. This made it seem as if members of the black middle class were absolutely advantaged. From being least harmed of blacks, it came to seem as if they were not appreciably harmed or not harmed at all. For balance, why not compare the black middle class with the white middle class?

Why shouldn't the black community have a vigorous and prosperous middle class as does the white community? Certainly it is a great tradition in western political philosophy that the stability and progress of a community depends on its having such a class. On the other hand, it may be, of course, as another tradition in western political philosophy has it, that there should be no classes at all. But that is another debate.[31]

In Part II, I took up the objections against preferential hiring as a form of compensation, the most troubling of which was that young white men are compelled to bear the major costs of compensation. I admitted this point but argued that preferential hiring does not require it. What preferential hiring requires is that young white males bear some of the costs of compensation. Here I showed that though

31. On this see Thomas Nagel, "Equal Treatment and Compensatory Discrimination"; and Richard Wasserstrom, "Racism, Sexism and Preferential Treatment: An Approach to the Topics," *U.C.L.A. Law Review* 24, no. 2 (Feb. 1977): 581-622.

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they may be innocent of wrongdoing against women and blacks, because they have had the advantage of such wrongdoing, it is not unjustified that they bear some of the costs. I conclude that no telling argument has been raised against preferential hiring.

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